Vet. App. No. 19-7391

BRIEF OF APPELLANT

IN THE UNITED STATES COURT OF APPEALS
FOR VETERANS CLAIMS

UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

ADRIAN A. CHAVEZ,
19-7391
Appellant,

v.

ROBERT L. WILKIE,
ADRIAN A. CHAVEZ,
SECRETARY OF VETERANS AFFAIRS,
Appellant,
Appellee.

v.

ON APPEAL FROM THE BOARD OF VETERANS' APPEALS
ROBERT WILKIE,
SECRETARY OF VETERANS AFFAIRS,

Appellee.

BRIEF OF APPELLANT

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STATEMENT OF THE ISSUE

The duty to assist requires VA to assist a claimant in obtaining evidence necessary to substantiate a claim for service connection. This includes making efforts to obtain all relevant records pertaining to a veteran's military service unless no reasonable possibility exists that such assistance would aid in substantiating the claim. Here, the Veteran reported working on C-123 aircraft—the type of aircraft known to have been involved in spraying herbicides during the Vietnam era—at a time and place that such aircraft were known to have been involved in spraying missions. However, VA failed to undertake any efforts to obtain records that may verify that the Veteran came into contact with C-123 aircraft contaminated with herbicides. Did the Board fail to provide adequate reasons or bases for its decision and ensure compliance with the duty to assist?

STATEMENT OF THE CASE

Adrian A. Chavez served honorably in the United States Air Force from January 1966 until December 1969. See R-1103 (DD 214). For his service, Mr. Chavez was awarded the National Defense Service Medical and the Air Force Good Conduct Medal. See *id.*

Mr. Chavez served at Clark Air Force Base (AFB) for two years in the 604th Mass Unit. See, e.g., R-676 (675-76); R-791; R-841. His Air Force Specialty Codes were 4313 and 4315, indicating that he served as an aircraft maintenance specialist. See R-635; R-705; R-744. He performed "pre-flight, 7-day home station check[s], and thru-flight

See R-635; R-705; R-744. He performed "pre-flight, thru-flight, home station check [s], and inspections on C-141 aircraft. R-676; see also R-682. He performed "duties on all MAC jet and turbo jet aircraft transiting" at Clark AFB, including "unscheduled maintenance, thru-flight, servicing, minor maintenance inspection, jacking, towing, and reconfiguration of aircraft." R-656 (655-57). He worked 12 hours per day, 7 days per week to ensure that troops and cargo could be carried back and forth from Vietnam as fast as possible. R-403 (401-04).

Although Mr. Chavez was assigned to the 60th MAS Unit he "worked on . . . planes regardless of [the] unit [he] was assigned to[]." *Id.* He and his fellow service members "worked on many other planes other than [] what [they] were assigned to[]" while stationed in the Philippines. *Id.* This included C-123 aircraft from Operation Ranch Hand. *See* R-403-04.

After service in November 2012, Mr. Chavez was diagnosed with prostate cancer. *See* R-485; *see also* R-486. In 2014, he was also diagnosed with coronary artery disease. *See, e.g.,* R-166 (166-68); R-219 (219-24); R-482 (481-84).

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[1] "From 1962 to 1971, the U.S. Air Force sprayed nearly 19 million gallons of herbicides in Vietnam, of which at least 11 million gallons was Agent Orange, in a military project called Operation Ranch Hand." Institute of Medicine, *Veterans and Agent Orange: Health Effects of Herbicides Used in Vietnam*, at 74 (1994), *available at* https://www.nap.edu/catalog/2141/veterans-and-agent-orange-health-effects-of-herbicides-used-in. The Court can, and should, take judicial notice of this study, like it did of a similar study in *Gray v. McDonald*, 27 Vet. App. 313, 322 n.7, n.9 (2015). See also *Smith v. Derwinski*, 1 Vet.App. 235, 238 (1991) ("Courts may take judicial notice of facts not subject to reasonable dispute." (citing Fed.R.Evid. 201(b)).

Mr. Chavez filed a claim for service connection for prostate cancer and ischemic heart disease in January 2016. *See* R-851-54. Two months later, the Regional Office denied both claims. In his timely notice of disagreement, Mr. Chavez stated that he "got prostate cancer from being on [board] many A/C aircraft and cargo in and out of Vietnam." R-585 (584-90). The RO issued a statement of the case that continued to deny service connection for prostate cancer and ischemic heart disease, R-431-52, and Mr. Chavez perfected his appeal to the Board, R-401-04.

In July 2019, the Board denied service connection for coronary artery disease[2] and prostate cancer. *See* R-5 (3-14). The Board found that "the C-123 herbicide exposure presumption [was] not applicable in this case" because "[w]hile the list of affected locations for the herbicide spraying C-123 aircraft included Clark AFB at the time the Veteran was stationed there (1969) and he has the requisite AFSC, his assigned unit did not fall into the units currently identified by VASM R-10." In addition, it found that "the Veteran's assumption that he was exposed to herbicides while serving at Clark AFB is not supported by competent evidence" while stating that Veteran's reports of herbicide exposure were competent, but "very salient details regarding his claimed exposure." *Id.*

[2] Ischemic heart disease is also called coronary artery disease and "is the term given to heart problems caused by narrowed heart (coronary) arteries that supply blood to the heart muscle." Institute of Medicine, *Cardiovascular Disability: Updating the Social Security Listings*, 102 (2010), *available at* https://www.ncbi.nlm.nih.gov/books/NBK209975/pdf/Bookshelf_NBK209975.pdf (last accessed June 22, 2020).

herbicide exposure are not competent, absent any salient detail regarding his claimed exposure." *Id.*

This appeal followed.

SUMMARY OF THE ARGUMENT

In denying service connection for prostate cancer and coronary artery disease, the Board failed to adequately determine whether Mr. Chavez had actual exposure to aircraft contaminated by herbicides. And it did not have sufficient evidence to undertake this analysis because it failed to ensure that the duty to assist was satisfied. The record indicates that the Veteran serviced C-123 aircraft that were not assigned to his unit at a time and place that C-123 aircraft used in Operation Ranch Hand are known to have been. Yet VA failed to make reasonable efforts to obtain additional unit records that may have verified that the Veteran performed work on those contaminated aircraft. As a result, the Board's denial of service connection for both prostate cancer and coronary artery disease was based on an underdeveloped record.

Remand is warranted for the Board to ensure that VA's duty to assist is satisfied, properly apply the law, and provide an adequate statement of reasons or bases for its decision.

STANDARD OF REVIEW

The Court reviews the Board's findings with respect to a veteran's claim for service connection and VA's satisfaction of the duty to assist under the "clearly erroneous" standard of review. 38 U.S.C. § 7261(a)(4); *Lennox v. Principi*, 353 F.3d

941, 944 (Fed. Cir. 2003). "A finding is 'clearly erroneous' when although there is evidence to support it, the reviewing court on the entire evidence is left with the definite and firm conviction that a mistake has been committed." *Gilbert v. Derwinski*, 1 Vet. App. 49, 52 (1990) (quoting *United States v. U.S. Gypsum Co.*, 333 U.S. 364, 395 (1948)). This Court may hold a clearly erroneous finding unlawful and set it aside or reverse it. See 38 U.S.C. § 7261(a)(4).

The Court reviews claims of legal error by the Board de novo. *See Butts v. Brown*, 5 Vet. App. 532, 539 (1993) (en banc). The Board's interpretation of statutes and regulations is a legal ruling to be reviewed without deference by the Court. *See Lendax v. Principi*, 353 F.3d at 945. A conclusion of law shall be set aside when that conclusion is determined to be "arbitrary, capricious, an abuse of discretion, or otherwise not in accordance with law or unsupported by adequate reasons and bases." *King v. Shinseki*, 26 Vet. App. 433, 437 (2014); see 38 U.S.C. § 7261(a)(3).

ARGUMENT

During Operation Ranch Hand (ORH), C-123 aircraft were used for "defoliation missions to destroy enemy food supplies and to clear and expose enemy transportation and infiltration routes." Institute of Medicine, *Post-Vietnam Dioxin Exposure in Agent Orange-Contaminated C-123 Aircraft*, The National Academies Press, 27, (2015), available at https://www.nap.edu/read/18848/chapter/5#33 [hereinafter

IOM C-123 report (last accessed June 22, 2020). The Air Force personnel involved in the spraying activities "in Vietnam" "have been considered among the most highly exposed workers to the chemicals that were in defoliants," and "[p]ersonnel who provided primary maintenance for the [C-123] aircraft" were also potentially exposed to herbicides." *Id.* at [2]-30. "[P]ersonnel who provided primary maintenance for the [C-123] aircraft were also potentially exposed to herbicides." *Id.* at 29-30.

VA has conceded that C-123 aircraft used to spray Agent Orange in Vietnam as part of OPERATION RANCH HAND continued to have herbicide residue on their interior surfaces after the operation. *See* 38 C.F.R. § 3.307(a)(6)(iv) (2019). Thus, any individual who performed service in the Air Force or Air Force Reserve under circumstances in which the individual concerned regularly and repeatedly operated, maintained, or served onboard C-123 aircraft known to have been used to spray an herbicide agent during the Vietnam era shall be presumed to have been exposed during such service to an herbicide agent." *Id.* But VA will presume that only Air Force members who were assigned to certain units "regularly and repeatedly operated, maintained, or served onboard C-123 aircraft known to have been used to spray an herbicide agent during the Vietnam era shall be presumed to have been exposed during such service to an herbicide agent." *Id.* But VA will presume that only Air Force members who were assigned to certain units "regularly and repeatedly operated, maintained, or served onboard C-123 aircraft known to have been used to spray an herbicide agent during the Vietnam era shall be presumed to have been exposed during such service to an herbicide agent." *Id.* an herbicide agent." *Id.* But VA will presume that only Air Force members who were assigned to certain units "regularly and repeatedly operated, maintained, or served onboard C-123 aircraft known to have been used to spray an herbicide agent during the Vietnam era shall be presumed to have been exposed during such service to an herbicide agent." *Id.*

There is no dispute that Mr. Chavez served at Clark AFB, one of the "affected locations for herbicide-spraying C-123 aircraft." *Id.* Those units are contained in a list that VA published on its website with the requisite Agent Orange Exposure Claims, Air Force Specialty Codes and Units, available at https://www.benefits.va.gov/compensation/docs/AO_C123_AFSpecialtyCodesUnit.pdf (last accessed June 6, 2020) [hereinafter, C-123 Specialty Codes & Units]. There is no dispute that Mr. Chavez served at Clark AFB, one of the "affected locations for herbicide-spraying C-123 aircraft . . . at the time [he] was stationed

§ 3.307(a)(6)(v) (2019). There is no dispute, then, that he is not entitled to a presumption that he was exposed to herbicides during his service at Clark AFB. However, even a veteran who is not entitled to presumptive herbicide exposure can also establish exposure on a facts-found basis. *See Combee v. Brown*, 34 F.3d 1039, 1042 (Fed. Cir. 1994). Therefore, the relevant question here is whether the evidence showing that Mr. Chavez was exposed to herbicides by conducting maintenance on contaminated C-123 aircraft. *See* R-403.

The Board denied the claim based on its conclusion that Mr. Chavez is not competent to state that he was exposed to herbicides. R-10. But he is competent to state that he worked on C-123 aircraft at Clark AFB during the Vietnam era. Competent lay evidence means any evidence not requiring that the proponent have specialized education, training, or experience" and "if it is provided by a person who has knowledge of facts or circumstances and conveys matters that can be observed and described by a lay person." 38 C.F.R. § 3.159(a)(2) (2019). Mr. Chavez served in the Air Force in 1969—during the Vietnam era—at Clark AFB—a location where contaminated C-123 aircraft from ORH were serviced. During this time, he frequently serviced aircraft outside of his unit. Specifically, Mr. Chavez has knowledge of facts or circumstances and conveys matters that can be observed and described by a lay person. 38 C.F.R. § 3.159(a)(2) (2019). Further, to be competent, "a witness must have personal knowledge." *Layno v. Brown*, 6 Vet.App. 465, 469 (1994). Therefore, the relevant question here is whether the evidence showing that Mr. Chavez was exposed to herbicides by conducting maintenance on contaminated C-123 aircraft. *See* R-403.

The Board denied the claim based on its conclusion that Mr. Chavis is not competent to state that he was exposed to herbicides. R-10. But he *is* competent to state that he worked on C-123 aircraft at Clark AFB during the Vietnam era.

CONCLUSION

Mr. Chavez served in the Air Force in 1969—during the Vietnam era—at Clark AFB—a location where contaminated C-123 aircraft from ORH were serviced. During this time, he frequently serviced aircraft outside of his unit. Specifically, Mr. Chavez has knowledge of facts or circumstances and conveys matters that can be observed and described by a lay person." 38 C.F.R. § 3.159(a)(2) (2019). Further, to be competent, "a witness must have personal knowledge." *Layno v. Brown*, 6 Vet.App.

Mr. Chavez to make reasonable efforts to obtain records that might demonstrate that the aircraft that Mr. Chavez serviced were the contaminated aircraft that are known to have been on Clark AFB or other contaminated aircraft. Had VA conducted this required development, it might have concluded that Mr. Chavez was exposed to herbicides during his service at Clark AFB and awarded presumptive service connection for his prostate cancer and coronary artery disease.

Therefore, remand is warranted for the Board to ensure that VA's duty to assist is satisfied, properly apply the law, and provide an adequate statement of reasons or bases for its decision.

Respectfully submitted,

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neglected to make reasonable efforts to obtain records that might demonstrate that the aircraft that Mr. Chavez serviced were the contaminated aircraft that are known to have been on Clark AFB or other contaminated aircraft. Had VA conducted this required development, it might have concluded that Mr. Chavez was exposed to both prostate cancer and coronary artery disease would be presumed. See 38 C.F.R. § 3.309(e) (2019). Therefore, the Board's failure to ensure that VA satisfied its duty to assist Mr. Chavez by obtaining federal records relevant to his claim constituted prejudicial error warranting vacatur and remand. See 38 U.S.C. § 5103A(a)(2); see also *Wagner v. Principi*, 370 F.3d 1096, 1098 (Fed. Cir. 2004).

Therefore, remand is warranted for the Board to ensure that VA's duty to assist is satisfied, properly apply the law, and provide an adequate statement of reasons or bases for its decision.

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June 22, 2020

CERTIFICATE OF SERVICE
BRIEF OF APPELLANT

I certify that on June 22, 2020, I filed the foregoing Brief of Appellant with the Clerk of the Court and served it on counsel for the other party by the Court's electronic filing system.

UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS

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